SAN HE MINING ZIMBABWE (PRIVATE) LIMITED
versus
LIZZIE GWASIRA
and
KEITH GWASIRA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 22 October 2025 & 6 November 2025

Urgent Court Application

R. T. Mutero with Z Bofu, for the applicant
G.R.J Sithole with Sande-Chimombe and M. Tarugarira, for the respondents

MAMBARA J:

Background and Facts

The applicant, San He Mining Zimbabwe (Private) Limited, entered into a mining cooperation agreement with the respondents, Lizzie Gwasira and Keith Gwasira, on 13 August 2022. In terms of that agreement, the applicant paid the respondents certain consideration which the respondents have accepted and retained in exchange for the right to conduct mining operations on two mining claims held by the respondents under Special Grants SG 8340 and SG 8341. The respondents, as holders of the special grants, undertook *inter alia* to obtain all necessary regulatory approvals – notably an Environmental Impact Assessment (EIA) certificate – to enable mining to commence.

The Special Grants in question were originally due to expire on 21 March 2023. Indeed, by the time the applicant sought to enforce the agreement in mid-2024, the Special Grants had lapsed. In a prior proceeding, HCH 5342/24, DEME J refused to grant relief to the applicant on the basis that the special grants had expired, rendering the mining agreement effectively impossible to perform at that time. However, thereafter, the respondents successfully renewed Special Grants 8340 and 8341, restoring the mining titles and removing the legal impediment that had previously existed. The applicant now returns to court seeking to compel the respondents to perform their obligations under the revived agreement –

specifically to apply for an EIA certificate within seventy-two (72) hours of service of this order so that mining operations can proceed lawfully.

The respondents oppose the application and raise multiple defences. They argue that:

(a) the matter is *res judicata* in light of DEME J's earlier judgment;
(b) the agreement is illegal and void *ab initio* for contravening Section 302 of the Mines and Minerals Act [*Chapter 21:05*] which forbids transferring special grant rights without ministerial consent, and that no such ministerial consent was obtained;
(c) the absence of the Minister of Mines and the Environmental Management Agency (EMA) as parties (non-joinder) is fatal; and
(d) that this Court cannot compel the respondents to "procure" an EIA certificate, as the issuance of such certificate lies within the exclusive purview of EMA, a non-party.

The Court must determine the enforceability of the mining agreement in light of the renewal of the special grants, address the impact (if any) of the prior judgment of DEME J, and assess each of the respondents' defences in turn.

Issues for Determination

1. Does the renewal of the special grants in October 2025 render the August 2022 mining agreement valid and enforceable once again, despite the earlier lapse of the grants? Was the agreement terminated by the lapse, or merely suspended by a temporary impossibility which has since been resolved?
2. Is the present application barred by the doctrine of *res judicata* owing to the judgment of DEME J in case HCH 5342/24, which had refused to enforce the agreement when the grants were expired? In other words, did that judgment finally determine the parties' rights such that the applicant cannot revive the claim after renewal of the grants?
3. Is the agreement illegal or unenforceable for want of compliance with Section 302 of the Mines and Minerals Act, which prohibits ceding or assigning special grant rights without the written consent of the Minister? If so, can the agreement be enforced at all, or do principles of law such as *pacta sunt servanda*, or the avoidance of *in pari delicto* injustice permit relief to the applicant who has performed in good faith?

4. Is it fatal that EMA (the authority which issues EIA certificates) and/or the responsible Minister are not cited as parties? Does the order sought necessarily involve those third parties' interests such that they must be before the Court?
5. Can the Court Compel an EIA Application? Can a court order a mining title-holder to apply for or obtain an EIA certificate, given that the granting of such certificate is a statutory process under the Environmental Management Act? Or is such an order an impermissible incursion into administrative discretion?
6. Finally, the Court must determine, under the agreement and applicable law, whether it is the respondents or the applicant who bears the responsibility to secure the EIA. The applicant avers that, since the mining titles stand in the respondents' names, the duty to apply for the EIA rests on the respondents – an obligation they explicitly assumed in the contract. The respondents contend the applicant ought to have obtained the EIA or that the court cannot compel them to do so.

I address these issues in turn.

1. Enforceability of the Agreement After Renewal: Temporary Impossibility vs Termination

It is common cause that when the special grants expired on 21 March 2023, the respondents were left without any valid mining title for the claims in question. Performance of the mining agreement became legally impossible at that time. One cannot lawfully mine without a valid grant, nor obtain an EIA certificate for a non-existent mining project. This state of affairs persisted when DEME J heard the earlier matter in 2024. The question is whether the lapse of the grants brought the contract to an end as a permanent supervening impossibility, or frustration of purpose, or merely suspended the obligations pending possible renewal.

Our law draws a distinction between permanent impossibility, which voids or terminates a contract, and temporary impossibility, which merely suspends contractual obligations while the impediment lasts. The principle was well articulated by PATEL J in *Mutangadura* v *TS Timber Building Supplies* 2009 (2) ZLR 424 (H), where the High Court held that a party cannot be relieved of its contractual obligations merely due to a temporary, passing impossibility. Once the impossibility is removed, the duty to perform revives. In other words, extinguished contracts are only those rendered impossible absolutely or definitively, not those where performance can resume when conditions change.

In *casu*, the expiry of the special grants was not necessarily an absolute, permanent bar to performance. The mining titles were always capable of renewal under the Mines and Minerals Act. Indeed, the respondents successfully obtained a renewal of the very same Special Grants SG 8340 and 8341, effectively restoring the legal ability to conduct mining on those claims. The supervening impossibility that arose in March 2023 has thus been cured. The foundation of the contract, the existence of valid mining rights, has been re-established. There is no evidence that either party regarded the agreement as cancelled or terminated in the interim. Rather, the agreement's performance was in abeyance awaiting the re-issuance of the grants.

The respondents argue, however, that the renewal "does not resuscitate or validate" the underlying contract, claiming the agreement lapsed or was void and cannot be revived by subsequent events. The Court does not find merit in that contention. This is not a situation where one party cancelled the contract or where the agreement was conditioned on the continuous existence of the grants with no provision for renewal. On the contrary, it was clearly within the contemplation of the parties that the special grants could be renewed and that the mining venture would continue over the renewed term. Equity and commercial sense dictate that the contract should be given effect now that the impediment is gone. To treat the temporary lapse as having permanently extinguished the parties' bargain (despite its revival in practical terms through renewal) would be artificial and would unjustly enrich the respondents – who have already been paid – at the expense of the applicant.

Notably, Zimbabwean and Commonwealth case law supports the view that rights and obligations under a contract can endure or revive after a period of suspension. For example, in *HEM Granite (Pvt) Ltd* v *Keeley Granite (Pvt) Ltd* 2008 (2) ZLR 123 (S), a mining "tribute" agreement was at issue. Even after that agreement was terminated, the Supreme Court held that rights which had accrued under the contract remained enforceable. The tributor was entitled to remove extracted minerals, provided contractual conditions (like paying royalties) were met. The logic is that the law will uphold a party's contractual rights that have vested or can still be honoured, notwithstanding changes or interruptions in the contract's life. By analogy, in the present case the applicant's contractual right to mine was tied to the existence of the special grants. When the grants were inactive, the right was suspended; now that the grants are active again, the right and correlative obligations are enforceable once more.

Put simply, *pacta sunt servanda* – agreements must be kept. Our courts have repeatedly affirmed the sanctity of lawful contracts freely entered by parties. As BHUNU J observed in *Mount Lothian Estate (Pvt) Ltd* v *Mutemachan*i, HH 14/08, "Lawful agreements are sacrosanct and have the full backing of the law. Thus, both parties stand firmly bound…". Here, the mining agreement was lawful (as will be discussed below) and remained in force. It did not self-terminate upon expiry of the grants. Now that performance is possible, the court is duty-bound to hold the parties to their bargain. The renewal of the special grants means the core basis of the contract – the respondents' entitlement to let the applicant mine those claims – is intact. The respondents, having eagerly accepted the applicant's payment, cannot approbate and reprobate. They cannot enjoy the benefits of the contract and later escape its obligations by pointing to an obstacle that has since been removed. They must perform their side of the deal.

2. Res Judicata and the Effect of DEME J's Judgment (HCH 5342/24)

The respondents raised a preliminary plea of *res judicata*, contending that DEME J's earlier judgment finally disposed of the enforceability of this agreement, thus barring the present application. It is trite that for a plea of *res judicata* to succeed, the same dispute must have been adjudicated previously between the same parties, regarding the same subject matter, and founded on the same cause of action, culminating in a final judgment on the merits by a court of competent jurisdiction. (See *Banda & Ors* v *ZISCO* 1999 (1) ZLR 340 (S), restating these requirements; see also *O'Shea* v *Chiunda* 1999 (1) ZLR 333 (S) on the need for a definitive prior judgment.)

Applying those requirements here, it is evident that the prior case and the present one, while related, are not on all fours. The parties in HCH 5342/24 were effectively the same (San He Mining and the Gwasiras, plus a third defendant in that case), and the relief sought was also to enforce the 13 August 2022 agreement. However, the cause of action and material circumstances at that time were markedly different. In the 2024 case before DEME J, the special grants had expired and had not yet been renewed. The court's refusal to enforce the agreement was premised on that factual situation – i.e. the impossibility of performance due to no valid mining title. It was not a decision on the merits of the contract's validity in a vacuum. It was a determination that at that time the contract could not be given effect.

Crucially, the present application is founded on new facts that arose after DEME J's judgment, namely the renewal of the special grants. This fundamental change – the restoration of the mining titles – means that the core basis of the earlier judgment (the

absence of any extant grant) no longer obtains. The law recognizes that where a new cause of action arises or new material facts emerge, a claim may be brought notwithstanding a superficially similar earlier case, because the issues are not truly "the same." The thing adjudged in the first case did not include the new facts (see *Kawondera* v *Mandebvu* SC 12/06; *Wolfenden* v *Jackson* 1985 (2) ZLR 313 (S) on *res judicata* not covering circumstances that have changed after the initial judgment). Here, the subject matter (enforcement of the mining agreement) might appear the same, but the factual and legal context is different. Previously there were no valid grants. Now there are. Thus, the question of enforcing the agreement post-renewal was never decided by DEME J and could not have been, since the renewal was not a fact before him.

Moreover, DEME J's refusal to enforce in 2024 was effectively a dismissal of the claim due to then-prevailing impossibility. It was not a pronouncement that the contract was void for all time, nor an order settling the parties' rights permanently. It left open the possibility that if the impediment were removed, the matter could be revisited. It was not a judgment on the merits of the contract's validity in perpetuity, but rather on the remedy at that point in time. In this regard, the earlier judgment lacks the finality and definitiveness on the present cause that *res judicata* demands. To borrow the language of the doctrine: the "cause of complaint" now (failure to perform despite renewed grants) is not identical to the cause then (failure to perform when grants had lapsed). Accordingly, the plea of *res judicata* cannot be sustained.

In fact, even the respondents appear to have recognized this, since after renewing the grants, they did not simply stand on DEME J's judgment but engaged with the applicant's renewed demands – indicating tacitly that the situation was indeed novel. The Court therefore holds that it is not estopped from hearing this matter on the merits. The prior judgment by DEME J is distinguished on the facts. It was the correct decision at the time given the lapse of the grants, but it does not bind this Court's hands now that the special grants are active again.

3. Illegality Defence: Section 302 of the Mines and Minerals Act and Ministerial Consent

Perhaps the most vigorously argued defence is that the 13 August 2022 agreement is illegal and void *ab initio* for contravening Section 302 of the Mines and Minerals Act [*Chapter 21:05*]. That section provides in clear terms that no holder of a mining location or special grant shall cede, assign or otherwise transfer any interest therein or rights thereunder without the prior written consent of the Minister. The rationale behind this provision is to

maintain government oversight over the transfer of mining rights – special grants being personal to the grantee (in this case, the Gwasiras). It is common cause that at no point did the respondents obtain the Minister's consent to cede or transfer any rights in SG 8340 or 8341 to the applicant. The respondents contend that the agreement effectively "transferred an interest" in the special grants to the applicant (allowing the applicant to work the claims and take minerals), which, absent ministerial consent, would violate Section 302(1). On that basis, they argue, the contract is illegal, null and void, and no court can enforce it. They cite the authority of *Muchakata* v *Netherburn Mine (Pvt) Ltd* 1996 (1) ZLR 153 (S), where GUBBAY CJ held that a contract prohibited by statute is void and unenforceable, and that courts have no discretion to enforce an illegal arrangement, as that would be contrary to public policy. Indeed, the maxim *ex turpi causa non oritur actio* was invoked: no cause of action can arise from an illegal act.

This Court is fully cognizant of the principle that it will not enforce a contract tainted with illegality. As a general rule, if an agreement expressly or implicitly violates a statute, the courts must refuse to uphold it, regardless of how inconvenient or unfair the result may be to one party. *Pacta sunt servanda* does not apply to unlawful undertakings – only to lawful ones. Thus, if the respondents are correct that the agreement amounted to an unauthorized cession of mining rights, the agreement would be void and this application doomed. However, the Court is not satisfied that the agreement should be so characterized, for several reasons.

Firstly, one must closely examine the nature of the agreement. The applicant is not claiming a transfer of title in the special grants. The special grants remain registered in the respondents' names and have been renewed in their names. The agreement appears to be in the nature of a mining tribute or partnership: the respondents granted the applicant the right to undertake mining operations on their claims and to share in the extracted minerals or profits, in return for monetary payments. Such arrangements are not uncommon in the mining sector and are not per se forbidden – provided the requisite approvals are obtained and the legal titleholder remains responsible for compliance. The agreement did not on its face purport to assign the special grant itself to the applicant; rather, it created contractual rights and obligations between the parties as to how the claims would be worked and how the benefits shared. In substance, of course, allowing a third party to work one's mining location is a form of ceding an interest in the location. The Mines and Minerals Act recognizes tribute agreements and similar contracts, but typically requires registration or approval of such

arrangements. The failure to obtain formal ministerial consent for this agreement is a breach of a statutory requirement – a serious matter, but not automatically rendering every aspect of the arrangement void as between the parties. The statute prohibits the act (ceding without consent) but notably does not declare any such contract void *ab initio*. In *Hattingh & Ors* v *Van Kleek* 1997 (2) ZLR 240 (S), the Supreme Court drew a distinction between statutory prohibitions and contractual invalidity: where a statute prohibits certain conduct but does not explicitly invalidate the contract, the court must assess the circumstances and parties' knowledge before voiding the agreement. Here, Section 302 forbids the cession or assignment of the grant, and non-compliance certainly renders the arrangement unauthorized in public law, but the Act does not state that any contract violating its terms is void. We are thus in the realm of the common law *ex turpi causa* doctrine, which requires further analysis of fault.

Secondly and relatedly, the Court cannot ignore who is seeking to avoid the contract on grounds of illegality. It is the respondents – the very people whom the law charges with obtaining ministerial consent – who now want to walk away scot-free, keeping the applicant's money, by pointing to their own failure to secure official approval. The court is loath to allow a party to profit from its own wrong. This is where the *in pari delicto* (equal fault) principle and its exceptions come into play. If both parties knowingly entered an illegal bargain, the law's stance is "*potior est conditio defendentis*" – the loss lies where it falls, and courts will not assist either side. But if one party is innocent or substantially less guilty than the other, the court may relax the par delictum rule to prevent a manifest injustice. In *Hattingh* v *Van Kleek* (supra), a foreign lender was unaware that exchange control laws forbade a loan repayment arrangement; the local borrowers tried to evade repayment by claiming the contract was illegal. The Supreme Court refused to let the borrowers off the hook, emphasizing that an agreement innocent on its face would not be declared illegal due to a statutory violation known only to one side. To deny relief to the innocent party would injure the innocent, benefit the guilty, and put a premium on deceit. That principle squarely applies here. The respondents, as holders of the mining titles and presumably advised by a mining agent or knowledgeable of mining law, either knew or ought to have known that ministerial consent was required for involving the applicant in the working of the grants. If they did not obtain it, that omission lies at their door. The applicant, on the other hand, is a mining investor who may not have been versed in Zimbabwe's regulatory niceties and who likely relied on the respondents to handle any necessary formalities. Indeed, the contract obliged the

respondents to do so. The respondents cannot now seize upon their own dereliction (lack of consent) to declare the agreement void after they have taken payment. To permit that would be to allow the respondents to escape their obligations by virtue of their own wrong, exactly the outcome our law seeks to prevent. Thus, even if the agreement was technically entered without the required consent, the justice of the case favours enforcement rather than voidance. The respondents cannot approbate (by receiving the benefits) and then reprobate (by repudiating the burdens as "illegal"). Equity will not aid such duplicity.

Thirdly, the Court notes that enforcement of this particular obligation (applying for an EIA) does not itself contravene Section 302 or any law. There is nothing illegal about the respondents applying to EMA for an EIA certificate – in fact, it is exactly what the law expects a mining title holder to do before mining. The broader performance of the mining agreement can be aligned with the law For instance, the parties can still regularize their arrangement by seeking the Minister's post-facto approval or structuring the operations in a compliant manner (perhaps via a recognized tribute agreement format submitted to the Ministry). The point is that it is still possible to give effect to the parties' intended collaboration without flouting the law, now that the grants are renewed. To declare the contract void outright would not serve any public policy at this juncture. On the contrary, public policy would be served by ensuring that mining operations proceed with all due approvals (including EIA and any necessary ministerial consent) and that parties honour their commercial commitments. As the old authorities say, the courts do not readily nullify a contract if there is a lawful way to honour it; *ut res magis valeat quam pereat* (better for the thing to have effect than to perish).

The respondents' reliance on *Muchakata* v *Netherburn Mine* is therefore misplaced in the circumstances. Yes, GUBBAY CJ in *Muchakata* reaffirmed that courts cannot "sanction an illegality for the sake of expediency" – a principle with which this Court wholeheartedly agrees. However, here the Court is not being asked to enforce an illegal act. Rather, we are upholding a contract in a manner that can be squared with the law. The enforcement of the duty to apply for an EIA is not illegal – it is legally required. And holding the respondents to account prevents them from benefiting from a statutory breach which is, in substance, of their own making. This is a far cry from enforcing an immoral or prohibited bargain. It is enforcing a lawful bargain in a context where one party attempted to use a technical statutory requirement as a shield for non-performance.

Finally, the respondents cited the maxim *ex turpi causa non oritur actio* (no cause of action from a base cause). It is often said that illegality cannot be cured by subsequent conduct, and that once void, always void. That is true in many cases. One cannot revive a contract that was void at birth. But as explained, this contract was not void *ab initio* in the sense of being malum in se or explicitly nullified by the Act; it was an operative agreement that lacked an official consent. The better view is that it was voidable at the instance of the State or subject to regulatory intervention, but between the parties it created obligations that neither can simply wish away without consequence. The Supreme Court in *Hattingh* cautioned that where one party is "guilty" of the illegality and the other is "innocent", the guilty party will not be permitted to invoke the illegality to avoid its obligations. That is the precise scenario here. The respondents cannot escape under the banner of illegality.

Accordingly, the Court finds that the mining agreement of 13 August 2022 remains valid and enforceable as between the applicant and respondents, notwithstanding the lack of ministerial consent up to now. The respondents must bear the consequences of not securing that consent by specifically performing their promises. This finding, of course, does not condone the breach of Section 302 – the respondents would be well advised to regularize their arrangement with the applicant by obtaining the Minister's retrospective approval as soon as possible. But as far as the relations between these parties are concerned, the contract stands. *Pacta sunt servanda*: the respondents are bound by what they freely undertook, and the Court will enforce those undertakings now that doing so will not offend any law.

4. Non-Joinder of EMA

The respondents next argue that the application is fatally defective for non-joinder of the Environmental Management Agency (EMA) and the responsible Minister, since the relief sought touches on the issuance of an EIA certificate. They contend that because EMA is the authority that must review and approve any EIA, it has a direct interest in these proceedings and ought to have been cited. They also suggest the Minister of Environment under whose direction EMA operates, should have been joined. In their view, the Court "cannot compel the respondents to obtain a statutory licence from an authority that is neither before the Court nor subject to its order".

It is certainly correct that where an order sought would materially affect the rights or interests of a third party, that party is a necessary joinder to the proceedings. However, not every order that tangentially involves a third-party process requires that third party's presence. The key question is whether the Court's order would impose any obligation on, or

otherwise prejudicially affect, EMA or the Minister. In this case, the order sought is directed solely at the respondents. It would require the respondents to apply for an EIA certificate within seventy-two hours. No relief is sought against EMA or the Minister. The Court is not being asked to order EMA to issue the certificate, nor to interfere in how EMA conducts its statutory mandate. EMA's role – to evaluate the EIA application and decide whether to grant a certificate – remains entirely intact and unimpinged. Thus, EMA's legal rights or duties are not being determined by this Court. EMA will do whatever it finds appropriate once the application is submitted.

Our courts have held that non-joinder is not fatal if the absent party's interests are not directly affected by the order, or if the absent party is only incidentally involved. Here, compelling the respondents to apply for the EIA does not compel EMA to do anything in particular; it merely triggers a process that should have already been triggered long ago. The EMA Act indeed places the onus on a project proponent (in this case, the holders of a mining title proposing to mine) to initiate the EIA process. The relief aligns with that statutory scheme. EMA has no conceivable objection to a court order that someone must follow the law by submitting an EIA report for approval – if anything, EMA expects such compliance.

It is telling that the respondents have not identified any specific prejudice EMA would suffer by not being joined. They invoke a formalistic argument that because an EIA certificate is a "statutory licence," the authority granting it must be joined if a court order relates to it. This is not a sound generalization. For example, if a court orders a company director to apply for exchange control permission or some government licence, it has never been the practice to join the Exchange Control Authority or licensing board as a respondent, unless the order sought would constrain how that authority exercises its discretion. Here, the Court is not dictating any outcome to EMA; it is simply ensuring the respondents make a good faith application to EMA. EMA's discretion and oversight remain fully intact.

Similarly, the Minister of Environment or EMA's Director-General, is not a necessary party to supervise the respondents' application. Should the respondents comply and apply, EMA will assess the application on its merits under the law. If the respondents fail to apply, they will be in contempt of the court order – a matter between the court and the respondents. Either scenario does not prejudice EMA. Therefore, I find the non-joinder argument to be without merit. It is certainly desirable in some cases to cite an authority for awareness, but it is not fatal here. (See *Minerals Marketing Corp* v *Norse Air Ltd* 1990 (1) ZLR 171 (S) for the

principle that a remedy can be granted even if a third party's actions are needed thereafter, as long as the order is framed against the obligated party only.)

In summary, EMA is not a necessary party because no relief is claimed against it and its powers are not curtailed by the order. The order we issue will operate on the respondents alone. Thus, the point in limine of non-joinder is dismissed.

5. Competence of Ordering the Respondents to Apply for an EIA Certificate

The respondents contended that an order compelling them to "procure" an EIA certificate is incompetent, premature, and contrary to statute, because the issuance of an EIA certificate depends on regulatory approvals and ministerial satisfaction, not a private party's demand. They argue that the Court would be usurping the role of the environmental authorities by effectively guaranteeing the grant of a licence, and that a court cannot direct someone to obtain a licence from a non-party authority.

This argument is something of a straw man. The applicant is not asking the Court to order "EMA to issue a licence" or to guarantee any outcome of the EIA process. The respondents' real concern was the way the draft order was couched. It read, "The first and second respondents be and are hereby ordered and directed to procure the EIA in respect of Special Grant 8340 and 8341 within seventy-two (72) hours of service of this order." At the hearing of the matter the applicant applied to amend the draft to only compel the respondents to lodge the application for the EIA with EMA. I duly granted the application as no prejudice was occasioned on the respondents. The order is now carefully phrased to require the respondents to apply for the EIA certificate only. That is, the respondents must take the necessary steps (such as engaging an environmental consultant, preparing an environmental impact report, and submitting it to EMA) to initiate and pursue the EIA process. There is a world of difference between ordering a party to *apply* for a permit and ordering that party (or, worse, the authority) to obtain/issue the permit. The former is a common form of mandatory interdict or specific performance; the latter would indeed be inappropriate. Here we are concerned only with the former.

Courts frequently grant orders of specific performance that require a party to use its best efforts to obtain some third-party consent or to take steps within its power even if success is not entirely guaranteed. For instance, a court can order a lessor to sign necessary papers to allow the lessee to apply for a subdivision or licence, or order a husband to secure a mortgage bond release in favour of his ex-wife (even though a bank's approval is needed). As long as the action required of the respondent is clear, feasible, and within that respondent's

power, the court can mandate it. Here, applying to EMA is plainly within the respondents' power. In fact, it is their legal duty as mining title holders planning to exploit the resource. The outcome (whether EMA approves the EIA) is beyond the respondents' direct control, but that does not make the order futile or incompetent. The order ensures that the respondents do what they are obliged to do to set the legal machinery in motion. After that, EMA will do its job; the Court's order will have been complied with once the application is made (and pursued in good faith).

It is worth emphasizing that obtaining an EIA certificate is a mandatory pre-condition to mining operations under the Environmental Management Act. No mining project can lawfully proceed without it. Thus, when the parties contracted in August 2022, it would have been implicit (if not explicit) that an EIA approval must be secured before full performance. The burden of securing that approval was, by agreement and by operation of law, placed on the respondents – since they are the ones who hold the mining title and would be recognized by EMA as the "developer" or project proponent. The applicant, being a stranger to the title, has no *locus standi* to apply for an EIA certificate on those claims. It had to rely on the respondents to do so, and that is exactly what the contract stipulates. Therefore, ordering the respondents to apply is simply holding them to their contractual and statutory responsibility.

The Court does not accept the contention that such an order "usurps administrative discretion". The discretion remains with EMA to grant or refuse the EIA certificate after following the legally required process (review of the impact assessment, etc.). If, hypothetically, EMA for some reason refuses to grant the certificate, that outcome does not derogate from this Court's order; it would simply mean the project cannot proceed unless and until the environmental concerns are addressed. But at least the respondents would have done what is required of them – something they have dragged their feet on, to the detriment of both the applicant and the public interest in environmental oversight.

The respondents' argument that the Court cannot "compel them to obtain a statutory licence" misconstrues the relief. The Court compels action by the respondents; it cannot compel result from EMA, and it is not trying to. The order is tailored to respect the regulatory scheme: it commands the respondents to submit to that scheme and seek the necessary approval. There is nothing "contrary to statute" about that – on the contrary, it enforces compliance with statute.

Accordingly, the Court finds that it is competent and appropriate to grant an order directing the respondents to apply for the EIA certificate within a prescribed time. This relief

is necessary to give effect to the parties' contract and to prevent further obfuscation or delay by the respondents. The mining venture cannot move forward without an EIA, and since the applicant has already paid and is ready to perform, the respondents must not be allowed to sit back and effectively stymie the project. A time-bound court order will ensure progress. This court has the power to issue a mandatory interdict to compel the performance of a statutory duty or contractual obligation, especially where no other remedy (such as damages) would be adequate in the circumstances. Here, damages would not suffice because the applicant bargained for a mining opportunity, not just a refund; the real benefit of the contract lies in the ability to extract minerals under the special grants. Justice demands specific performance.

In summary, there is nothing ultra vires or impractical about ordering the respondents to do what they ought to have done long ago. The objection to the form of relief is dismissed. The Court will, however, clarify in its order that the respondents are to submit the EIA application (and take all necessary steps within their control to pursue it) within the stipulated time. This makes clear that we are mandating the application process, not the outcome.

6. Duty to Apply for the EIA Certificate Rests with Respondents

As a corollary to the above, and for the avoidance of doubt, the Court expressly finds that the duty to apply for and obtain the EIA certificate lies with the respondents rather than the applicant. Under Zimbabwe's Environmental Management Act [*Chapter 20:27*], the obligation to conduct an environmental impact assessment and obtain an EIA certificate is placed on the "developer" of the project. In the context of mining, the holder of the mining title is ordinarily regarded as the developer, or at least the one who must ensure compliance. The special grants are in the names of Lizzie and Keith Gwasira. They are the ones who would be recognized by EMA as the persons responsible for the mining project. The applicant, not being the title holder, could not independently seek an EIA for those particular claims – any application would require proof of legal interest in the project, which ultimately ties back to the mining rights held by the respondents.

The mining agreement itself evidently acknowledged this, as it assigned to the respondents the task of securing all necessary government approvals (with the cooperation of the applicant as needed). This division of responsibility makes sense: the respondents hold the legal title and therefore are the appropriate interface with regulators for licences pertaining to that title. The applicant's role (and expertise) was presumably to bring in investment, technical know-how, and carry out mining operations once approvals are in place. It is therefore just and logical that the respondents be the ones compelled to pursue the

EIA. They cannot shift this burden to the applicant now, especially after having argued that the applicant has no direct rights in the grants (which was their position under the Section 302 defence). One cannot have it both ways – if the applicant "has no rights" to the grants without ministerial consent, then clearly the applicant also has no standing to apply for an EIA as if it were the project owner. Thus, by the respondents' own logic, they must be the ones to lead the EIA process.

In summary, the respondents bear the legal duty to obtain the EIA certificate, and the applicant has no avenue to do so unilaterally. The order compelling the respondents is therefore properly directed at the responsible parties. The Court also notes that by assuming the role of special grant holders (and enjoying that status through renewal), the respondents must also accept the attendant responsibilities that come with such ownership – including compliance with environmental laws. They cannot enjoy the fruits of being title holders (such as receiving payments from an investor) without also carrying the burdens.

Conclusion

Having considered all the arguments and defences raised, the Court concludes as follows:

The mining agreement of 13 August 2022 remains valid and enforceable between the applicant and the respondents. The temporary lapse of the special grants did not extinguish the contract; it only suspended performance. With the special grants now renewed and extant, the impediment to performance has been removed, and the parties are obliged to fulfil their respective duties under the contract. The principle of sanctity of contract (*pacta sunt servanda*) applies – the respondents must honour their bargain now that it is possible to do so.

The judgment of DEME J (HCH 5342/24) is not a bar to the present relief. That judgment is distinguished on the facts and does not render the matter *res judicata* in light of the changed circumstances (renewal of the grants). There is therefore no legal impediment to this Court entertaining the application on its merits.

The respondents' defence of illegality under Section 302 of the Mines and Minerals Act is rejected. While the agreement was made without prior ministerial consent, the respondents cannot be allowed to avoid the contract on that ground in the particular circumstances here. The contract can be performed in a lawful manner going forward (indeed, performing it requires compliance and regulatory approvals). The Court will not aid the respondents in escaping their obligations by invoking a statutory provision that they themselves disregarded. As was observed in *Hattingh* v *Van Kleek*, a party will not be

permitted to profit from a statutory illegality that only they were aware of or responsible for. The *pacta sunt servanda* principle, tempered by considerations of fairness and innocence, dictates enforcement rather than invalidation in this case. The agreement is not void *ab initio*; it remains a binding contract.

The non-joinder of EMA (and any other authority) is not fatal. The relief granted does not directly affect EMA's rights or compel EMA to do anything. No order is made against EMA. Thus, the Court can proceed to grant an effective order in the absence of EMA as a party.

It is perfectly within this Court's power to compel the respondents to apply for the EIA certificate. Doing so ensures the law is followed (by having an EIA process undertaken) and advances the fulfilment of the contract. The Court is not intruding into EMA's domain; it is upholding its own domain – the enforcement of contracts and legal duties – which incidentally requires the respondents to initiate a statutory application. The relief is narrowly focused and does not guarantee any particular administrative outcome beyond the respondents' submission of an application.

The duty to obtain the EIA certificate lies with the respondents, given that they are the holders of the mining titles and were so designated by the agreement. The applicant cannot obtain the EIA on its own. Therefore, the only way to give effect to the contract and the law is to compel the respondents to act.

The respondents have enjoyed the benefit of the applicant's performance (payment) and the renewal of their valuable mining titles; they must now reciprocate by performing their side. To countenance any further refusal would not only violate contractual justice but also unjustly enrich the respondents. This Court will not allow the respondents to hold the project (and the applicant's invested funds) hostage.

There is accordingly a lawful basis to grant the order sought by the applicant, with a minor modification to ensure clarity that what is required is the submission of the EIA application within the stipulated time.

As the applicant has succeeded in its application, it is entitled to its costs. There are no special circumstances warranting a punitive costs order, so costs will be awarded on the ordinary scale.

Before I turn to the formal order, I wish to echo a broader observation. At the heart of this dispute is the principle that agreements must be honoured and enforced as far as possible in accordance with the parties' original intent. Temporary setbacks or technical lapses should

not automatically defeat genuine agreements, especially where the parties can, by mutual effort or court intervention, put matters back on track. This judgment affirms that notion. The respondents, having freely entered into the contract and having since renewed the very rights that enable its performance, cannot shirk their obligations. The law will require them to do that which they promised to do. And if for any reason the regulatory authorities ultimately refuse the EIA or the arrangement cannot proceed, that would be a different matter for another day – but as of now, there is nothing preventing the respondents from at least taking the necessary steps.

In closing, the Court emphasizes that *pacta sunt servanda* is not an empty slogan in our jurisprudence; it is a cornerstone of commercial certainty. Parties who have received what they bargained for are expected to perform what they bargained to do. The respondents must now do just that.

Disposition and Order

For the reasons above, the application is granted. It is ordered as follows:

1. The mining agreement entered into between the applicant and the respondents on 13 August 2022 is hereby declared to be valid and binding on the parties, the subsequent renewal of Special Grants 8340 and 8341 having restored the capacity for its performance.
2. The respondents (Lizzie Gwasira and Keith Gwasira) be and are hereby directed and ordered to apply for an Environmental Impact Assessment (EIA) certificate in respect of the mining operations contemplated under Special Grants 8340 and 8341. The respondents shall, within five (10) days from the date of this order, submit to the Environmental Management Agency (EMA) a complete EIA prospectus or application for an EIA certificate for the mining project on Special Grants 8340 and 8341, and shall take all necessary steps required of them under the law to obtain the EIA certificate.
3. The respondents shall do everything lawfully required in cooperation with the applicant to expedite the processing of the EIA application, including paying the prescribed fees, engaging approved environmental consultants, and providing any information or documentation required by EMA, so that an EIA certificate may be issued in the ordinary course. The respondents shall keep the applicant informed of the progress of such application and shall not unreasonably refuse to consent to the applicant's involvement in the EIA process as an interested party.

4. In the event that the respondents fail to comply with paragraph 2 of this order within the stipulated 10-day period, the applicant is granted leave, if necessary, to approach this Court on the same papers (duly supplemented) for any further or alternative relief, including but not limited to an order authorizing the Sheriff or another nominee to take such steps on the respondents' behalf, or for a finding of contempt of court against the defaulting respondents.
5. The respondents shall pay the applicant's costs of suit on the ordinary scale, jointly and severally, the one paying the other to be absolved.

MAMBARA J: ……...

Tabana Marwa, applicant's legal practitioners
Tarugarira Sande Attorneys, respondents' legal practitioners